

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Courtney Vishawadia	Team: Team # 3	CCRB Case #: 200201243	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 02/26/2002 2:15 AM	Location of Incident: the corner of Nostrand Ave. and Hancock St.	Precinct: 79	18 Mo. SOL 8/26/2003	EO SOL 8/26/2003	
Date/Time CV Reported Tue, 02/26/2002 6:02 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 02/26/2002 6:02 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Cantone	21571	920081	079 PCT
2. POM Norman Grandstaff	24629	922445	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Stephen Cantone	Discourtesy: PO Stephen Cantone spoke obscenely and/or rudely to § 87(2)(b)	
B.POM Stephen Cantone	Force: PO Stephen Cantone used physical force against § 87(2)(b)	
C.POM Norman Grandstaff	Force: PO Norman Grandstaff used physical force against § 87(2)(b)	
D.POM Norman Grandstaff	Abuse: PO Norman Grandstaff frisked § 87(2)(b)	

Synopsis

On February 26, 2002, PO Norman Grandstaff and his partner, PO Stephen Cantone, pulled § 87(2)(b) over at the corner of Hancock Street and Nostrand Avenue in Brooklyn for a broken taillight. § 87(2)(b) alleged that PO Cantone called him a “jerk-off” during the stop and then used force to remove him from his vehicle. According to § 87(2)(b) once he was out of his vehicle, PO Grandstaff used force to place him against the vehicle and frisked him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Mediation was not offered in this case due to the summons.

This case was transferred from Inv. Ferguson to Inv. Vishawadia on November 6, 2002.

Summary of Complaint

After receiving two summonses on February 26, 2002, § 87(2)(b) drove to the 79th Precinct where he filed a complaint regarding the incident. § 87(2)(g)

§ 87(2)(b) was interviewed at the CCRB on March 13, 2002 (encl. 4) when he stated that PO Norman Grandstaff and PO Stephen Cantone § 87(2)(b) identified the officers by name) pulled his vehicle over at the corner of Hancock Street and Nostrand Avenue in Brooklyn at approximately 2:15 a.m. According to § 87(2)(b) PO Cantone approached the driver’s window and PO Grandstaff approached the passenger’s window. PO Cantone asked § 87(2)(b) whose car it was, but § 87(2)(b) did not respond. PO Cantone then requested his driver’s license, registration, and insurance. § 87(2)(b) retrieved the documents from his rear pocket and provided them to PO Cantone. § 87(2)(b) asked PO Cantone why he was stopped to which PO Cantone responded that he would tell § 87(2)(b) why he was stopped when he (PO Cantone) was ready. PO Cantone again asked § 87(2)(b) whose car it was. § 87(2)(b) replied that all the paperwork was there and told the officer that he was in a hurry. PO Cantone responded, “Because you are in a hurry, you’re gonna wait longer, jerk-off.” (**Allegation A**)

PO Cantone and PO Grandstaff went back to their vehicle and returned two minutes later. PO Cantone handed § 87(2)(b)’s documents back to him along with a summons for a broken taillight. § 87(2)(b) stated that he did not have a broken taillight, but PO Cantone insisted that he did. § 87(2)(b) turned on his lights and exited the car so that he could examine the taillight. However, § 87(2)(b) did not see the broken taillight. While § 87(2)(b) was outside of the car, he made a comment to PO Cantone that he would see him in court. § 87(2)(b) reentered his car and PO Cantone stated to § 87(2)(b) that he was making the situation more difficult than it should have been. § 87(2)(b) replied, “Whatever” and PO Cantone told him not to whatever him. § 87(2)(b) again said whatever and told PO Cantone to fuck himself. At that point, PO Cantone told § 87(2)(b) to step out of the car because he would be getting a summons for § 87(2)(b).

§ 87(2)(b) had rebuckled his seatbelt and was moving slowly to get out of the car. PO Cantone grabbed § 87(2)(b)’s jacket from outside the car and pulled at the jacket through the window while telling § 87(2)(b) that if he did not get out of the car, he would pull him out. (**Allegation B**) PO Cantone opened the car door and § 87(2)(b) informed PO Cantone that his seatbelt was fastened to which PO Cantone responded that § 87(2)(b) should unbuckle the belt.

As § 87(2)(b) stepped out of the car, PO Cantone asked him for his driver’s license, because he was getting a § 87(2)(b) summons. § 87(2)(b) said that his driver’s license was on the seat and PO Cantone instructed him to retrieve the license. § 87(2)(b) stated during his CCRB interview that because it was dark, he feared that if he reached into the vehicle the officers might believe that he was reaching for a weapon, so he refused to get his license and told PO Cantone to get the license off the car seat. At that point, PO Grandstaff stepped up to § 87(2)(b) grabbed him by the shoulders, pushed § 87(2)(b) up against the car, and instructed him to put his hands on the car. (**Allegation C**) PO Grandstaff patted § 87(2)(b)

down as PO Cantone reached into the car for the driver's license. **(Allegation D)** After PO Grandstaff patted down § 87(2)(b) he released him. The officers returned to their vehicle and § 87(2)(b) reentered his.

PO Cantone returned to § 87(2)(b) s § 87(2)(b) summons and gave it to § 87(2)(b) § 87(2)(b) exited his car so that he could see PO Cantone's and PO Grandstaff's shields. After he looked at their shields, § 87(2)(b) told PO Cantone that he was going to fuck him and his partner. PO Cantone told him to get into his car. § 87(2)(b) informed PO Cantone that he was going to the 79th Precinct to speak with his commanding officer. PO Cantone again told § 87(2)(b) to get inside the car, pushed § 87(2)(b) down into the seat, and kicked the door closed. § 87(2)(b) drove to the 79th Precinct where he filed the complaint. § 87(2)(b) stated that the Lieutenant at the precinct showed § 87(2)(b) that one of the two bulbs in his taillight was out.

Results of Investigation

OFFICER STATEMENTS

PO Stephen Cantone and his partner, PO Norman Grandstaff, were interviewed at the CCRB on October 3, 2002 (encs. 9, 10). PO Cantone and PO Grandstaff testified that on February 26, 2002, they pulled over § 87(2)(b) s vehicle on the corner of Nostrand and Hancock. PO Cantone could not recall why the vehicle was pulled over, but assumed that it was for a broken taillight based upon the summons that was issued. PO Grandstaff testified that he observed the broken taillight. PO Cantone approached the driver's window while PO Grandstaff approached on the passenger's side. PO Cantone informed § 87(2)(b) why he was being stopped when the officers approached the car. PO Cantone requested § 87(2)(b) s paperwork, but he did not hand it over immediately. According to PO Grandstaff, § 87(2)(b) stated that he was stopped because he was black and PO Cantone stated that § 87(2)(b) was cursing at the officers. § 87(2)(b) eventually provided his paperwork to PO Cantone. Both officers denied that PO Cantone called § 87(2)(b) a "jerk-off."

PO Cantone testified that after § 87(2)(b) provided his paperwork, PO Cantone and PO Grandstaff returned to their vehicle and wrote a summons for the taillight. PO Cantone stated that he returned to § 87(2)(b) s vehicle and handed him the summons. According to PO Cantone, § 87(2)(b) went "nuts." Both officers testified that § 87(2)(b) exited his car and yelled, "Wake up Hancock Street!" It was at that point that § 87(2)(b) called the officers "white cocksuckers" and PO Grandstaff said that § 87(2)(b) told the officers not to "fuck" with him. According to PO Cantone, § 87(2)(b) also argued that there was nothing wrong with the taillight. At that point, the officers issued § 87(2)(b) a summons for § 87(2)(b) from the information on the initial summons. The officers left the scene without incident.

Both officers testified that § 87(2)(b) exited his vehicle on his own, that he was never ordered to exit the vehicle, that neither officer kicked or struck § 87(2)(b) s vehicle, and that neither officer touched or frisked § 87(2)(b) at any point.

POLICE DOCUMENTS

The roll call from the 79th precinct for February 26, 2002 (encl. 11) verifies that PO Cantone and PO Grandstaff were partners at the time of the incident. The officers both made memo book entries (encs. 9, 10) documenting the stop. PO Cantone's memo book documents that § 87(2)(b) behaved in a "violent and threatening manor – yelling, cursing, waving arms after calling PO 'white cocksucker' and do you want to fuck with me?" PO Grandstaff made entries documenting the stop and stating that § 87(2)(b) "did become violent, threatening by yelling, cursing and waving his arms. 'white cocksucker,' 'wake up Hancock St,' 'you don't wanna fuck with me,' etc." § 87(2)(b) was issued two summonses (encl. 12), one for the broken taillight and one for § 87(2)(b). Additionally, Lt. McSorley (who took the complaint at the precinct) noted on the complaint form (encl. 5) that he verified that the right taillight was out on § 87(2)(b) s vehicle at the time he was present at the precinct filing the complaint.

Conclusions and Recommendations

CREDIBILITY

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A - PO Stephen Cantone spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(g)

Allegation B - PO Stephen Cantone used physical force against § 87(2)(b)

§ 87(2)(b) testified that upon his failure to comply with an order to exit his vehicle in a timely manner, PO Cantone reached into the vehicle and used physical force in order to remove him from the car. However, both PO Cantone and PO Grandstaff stated that § 87(2)(b) exited the vehicle by himself without incident. § 87(2)(g)

Allegation C - PO Norman Grandstaff used physical force against § 87(2)(b)

Allegation D - PO Norman Grandstaff frisked § 87(2)(b)

§ 87(2)(b) alleged that PO Grandstaff used force against him to place him against the vehicle and frisked him after § 87(2)(b) used profanity toward the officers and refused to comply with their orders.

§ 87(2)(g)

However, the officers also denied that PO Grandstaff used any force against § 87(2)(b) during the incident or frisked him at any point. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: